Gmail

Brendan Ngwa Nforbi <bnn.cdl@gmail.com>

Re: Contains JavaScript: Re: Newanforbi v. Palacios re Stipulated Protective Order

Blaze Van Dine <blaze@sims-law.net> Sun, Jun 14 at 11:23 AM
To: Brendan Ngwa Nforbi <bnn.cdl@gmail.com>
Cc: June Meinecke <june@sims-law.net>, Kim Schmitt <kschmitt@sims-law.net>

Thank you Mr. Newanforbi. We will file the proposed stipulated protective order with the Court. FYI, courts typically take a few days to get these signed off. We are producing discovery responses to tomorrow. Responsive documents protected by the confidentiality provision will be produced upon the Court's entry of the stipulated protective order.

Blaze Van Dine

Attorney at Law

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From: Brendan Ngwa Nforbi <bnn.cdl@gmail.com>
Sent: Saturday, June 13, 2026 6:12 PM
To: Blaze Van Dine <blaze@sims-law.net>
Cc: June Meinecke <june@sims-law.net>; Kim Schmitt <kschmitt@sims-law.net>
Subject: Contains JavaScript: Re: Newanforbi v. Palacios re Stipulated Protective Order

Good evening Mr. Van Dine,

Thank you for letting me know. Attached is the Stipulated Protective Order in PDF format with my electronic signature: /s/ Brendan Ngehsi Newanforbi.

Please confirm receipt and let me know once the order has been filed with the Court.

Regards,

Brendan Ngehsi Newanforbi

On Sat, Jun 13, 2026 at 6:11 PM Brendan Ngwa Nforbi <bnn.cdl@gmail.com> wrote:

> Good evening Mr. Van Dine,
>
> Thank you for letting me know. Attached is the Stipulated Protective Order in PDF format with my electronic signature: /s/ Brendan Ngehsi Newanforbi.
>
> Please confirm receipt and let me know once the order has been filed with the Court.
>
> Regards,
>
> Brendan Ngehsi Newanforbi
>
> On Sat, Jun 13, 2026 at 4:16 PM Blaze Van Dine <blaze@sims-law.net> wrote:
>
> > Thank you Mr. Newanforbi. The attached document, however, was not signed. You can type a signature such as "/s/ Brendan Ngehsi Newanforbi". Or you can print, sign using a pen, and email me a picture of the signed page. When I receive your signed version, we will apply our signature stamp and file with the Court.
> >
> >
> > Blaze Van Dine
> >
> > Attorney at Law
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From: Brendan Ngwa Nforbi <bnn.cdl@gmail.com>
Sent: Thursday, June 11, 2026 5:03 PM
To: Blaze Van Dine <blaze@sims-law.net>
Cc: June Meinecke <june@sims-law.net>; Kim Schmitt <kschmitt@sims-law.net>
Subject: Re: Newanforbi v. Palacios re Stipulated Protective Order

Mr. Van Dine,

Attached is my signed copy of the Stipulated Protective Order.

Thank you.

Brendan Ngehsi Newanforbi

On Wed, Jun 10, 2026 at 5:33 PM Blaze Van Dine <blaze@sims-law.net> wrote:

> Excellent. See attached.
>
> Blaze Van Dine

Attorney at Law

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From: Brendan Ngwa Nforbi <bnn.cdl@gmail.com>
Sent: Wednesday, June 10, 2026 9:07 AM
To: Blaze Van Dine <blaze@sims-law.net>
Cc: June Meinecke <june@sims-law.net>; Kim Schmitt <kschmitt@sims-law.net>
Subject: Re: Newanforbi v. Palacios re Stipulated Protective Order

Mr. Van Dine,

Thank you — I agree we have made substantial progress, and I appreciate your willingness to work through the details.

I have no interest in making this process more burdensome than necessary — my goal is simply to get the order in place so we can both move forward efficiently.

Once the protective order is finalized and the June 15 production is complete, I expect the path forward will become clearer for both sides.

If there is a way to avoid unnecessary expenditure of time and resources beyond that point, I am open to having that conversation. For now, please send the final version when you are ready, I'll review it then sign it and return it if everything is in order.

Regards,

Brendan Ngehsi Newanforbi

On Tue, Jun 9, 2026 at 6:20 PM Blaze Van Dine <blaze@sims-law.net> wrote:

> I'm glad we've been able to make substantial progress. See my comment below.
>
>
> Blaze Van Dine
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> Attorney at Law
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From: Brendan Ngwa Nforbi <bnn.cdl@gmail.com>
Sent: Tuesday, June 9, 2026 10:10 AM
To: Blaze Van Dine <blaze@sims-law.net>
Cc: June Meinecke <june@sims-law.net>; Kim Schmitt <kschmitt@sims-law.net>
Subject: Re: Newanforbi v. Palacios re Stipulated Protective Order

Mr. Van Dine,

Thank you for your response on the protective order.

After considering your points, I agree to withdraw my request for personal retention of confidential materials after the cases conclude. The order may require return or destruction as you propose.

On regulatory complaints, I accept your proposed 90-day window after termination of this action. To avoid any later dispute about timing, please include a brief clarifying sentence: "The 90-day period shall be tolled during any pending regulatory investigation that was initiated within that period." [I'm concerned this is might unnecessarily cause confusion. As agreed now, you can submit confidential information in support of a regulatory complaint at any time during the litigation and 90 days after the litigation ends. Tolling wouldn't be at issue.] This is a reasonable safeguard and does not expand the substantive right.

If these modifications are acceptable, please send me a final clean version of the protective order reflecting our agreements (including the 90-day regulatory complaints provision and the removal of the personal retention clause). I will personally sign it and return it to you for filing.

Thank you for working with me to finalize this. I look forward to receiving the final order so we can proceed with the June 15 document production.

Regards,

Brendan Ngehsi Newanforbi

On Mon, Jun 8, 2026 at 5:34 PM Blaze Van Dine <blaze@sims-law.net> wrote:

> Mr. Newanforbi, see my comments below.
>
>
> Blaze Van Dine
>
> Attorney at Law
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>
>
> ---
>
> **From:** Brendan Ngwa Nforbi <bnn.cdl@gmail.com>
> **Sent:** Saturday, June 6, 2026 10:00 AM
> **To:** Blaze Van Dine <blaze@sims-law.net>

Cc: June Meinecke <june@sims-law.net>; Kim Schmitt <kschmitt@sims-law.net>
Subject: Re: Newanforbi v. Palacios re Stipulated Protective Order

Mr. Van Dine,

Thank you for your revised protective order. You have been very fair in most respects, and I appreciate your willingness to allow cross-use in the Derrick case, retention until both cases conclude, and regulatory complaints during the litigation.

I have two narrow requests to finalize the order:

1. Personal retention. I ask to retain one complete set of Confidential Information after the cases conclude, solely for my personal records and not for any competitive or commercial purpose. This is common for pro se litigants who cannot easily recreate records. [I'm not sure this is accurate. Do you have a citation to any authority?] I propose adding at the end of Section VIII: "Notwithstanding the foregoing, each Party may retain one complete set of Confidential Information for their personal records, subject to continued confidentiality obligations."

2. Regulatory complaints. The limitation to "during the pendency of this action" could prevent me from reporting serious misconduct that I discover late. I propose either removing that phrase entirely, or extending it to "during the pendency of this action and for one year thereafter." I am open to a reasonable compromise. [I'm concerned about our ability to keep track of this provision a year after litigation has ended. And, I think it's very unlikely that you would discover serious misconduct after the action has closed, but not during the action given discovery. What about "within 90 days of the termination of this action"?

If you agree to these two changes, I will sign the order immediately. I will also work with you to enter a parallel protective order in the Derrick federal case.

Thank you for working with me on this.

Sincerely,

Brendan Ngehsi Newanforbi

On Sat, Jun 6, 2026 at 8:49 AM Blaze Van Dine <blaze@sims-law.net> wrote:

> Mr. Newanforbi,
>
> Attached is my revised proposed protective order in response to your edits. I rejected some of your

changes, accepted others, and also modified some of you proposed changes. There is at least one comment where I provided authority in support.

Generally speaking:

- My client's policies and personnel files have to be included as a category of protected documents. They are quintessential protected information that courts routinely protect.
- I am willing to allow use of protected materials in Newanforbi v. Derrick et al., E.D. Cal. No. 2:26-cv-00004, provided we enter into a stipulated protective order in that action. (Ideally, once we agree to the parameters of this stipulated protective order, we can make minor changes for its use in the federal action). But use must be limited to the 2 lawsuits. Otherwise, the protection provided by a protective order is meaningless, as the purpose is to prevent use of confidential materials outside of litigation.
- I'm open to retention of confidential material UNTIL both actions are concluded. But thereafter confidential material must be returned or destroyed. Again, that is one of the protections provided by a protective order.
- I am open to the disclosure of confidential materials to regulatory/licensing agencies but only during the pendency of the litigation. Once the case has concluded, there is no reason for there to be potential use in perpetuity. And such use would violate the requirement that the confidential materials be returned or destroyed at the conclusion of the litigation.

Please review and provide feedback or advise if I have your permission to affix your signature. If after reviewing you want to schedule a time to meet and confer, just let me know. Thanks again for your cooperation.

Blaze Van Dine

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From: Brendan Ngwa Nforbi <bnn.cdl@gmail.com>
Sent: Thursday, June 4, 2026 3:10 PM
To: Blaze Van Dine <blaze@sims-law.net>
Cc: June Meinecke <june@sims-law.net>; Kim Schmitt <kschmitt@sims-law.net>
Subject: Re: Newanforbi v. Palacios re Stipulated Protective Order

Mr. Van Dine,

Thank you for your candid response. I understand you have a heavy schedule.

I agree to the following extension terms:

1. Responses to Requests for Production, Special Interrogatories, and Form Interrogatories — Set One, as propounded on both Defendant Katie Palacios and Defendant HOPE Psychotherapy, Inc. — are extended to June 15, 2026.

2. Responses to Requests for Admissions remain due June 8, 2026, as you proposed.

3. No documents designated as "Confidential" shall be produced until a stipulated protective order has been filed with and approved by the Court. If you wish to produce non-confidential documents before then, I have no objection.

4. The June 15 deadline is firm and not subject to further extension absent a written stipulation signed by both parties.

Please confirm these terms by reply email so that we have a clear written record of our agreement.

Regarding the protective order:

I am available for a brief meet-and-confer call on Tuesday, June 9 or Wednesday, June 10 at a time that works for your schedule. If a call is not possible, please provide written comments on my redlined version by June 10, so we have time to finalize the order before the June 15 production deadline.

I believe my redline is fair and balanced, and the changes apply equally to both parties. The three core protections I require are:

· Cross-use in my related federal case (Newanforbi v. Derrick et al., E.D. Cal. No. 2:26-cv-00004), which involves the same HOPE program and some of the same defendants;

· The ability to retain a copy of produced materials after the case concludes, for my own records and for use in related litigation; and

· The ability to make good-faith complaints to licensing boards and regulatory agencies, without waiving confidentiality protections.

These protections are necessary for me to stipulate. I am open to reasonable compromise on implementation details, but I cannot agree to an order that bars me from using evidence in my federal case or requires me to destroy records I may need.

Thank you for working with me on this. I look forward to resolving it promptly.

Brendan

On Thu, Jun 4, 2026 at 2:27 PM Blaze Van Dine <blaze@sims-law.net> wrote:

> Mr. Newanforbi,
>
> Just for background, the draft I proposed was modeled after the Northern District's Proposed Stipulated Protective Order. But I understand your concerns and am willing to work with you. But that will take time. And I'm in a mediation all day and am jammed into mid next week. Given the sensitive subject matter of the documents, I don't think either of us want them produced without protections.
>
> I propose we continue the June 8 production as to only the requests for production, special and form interrogatories to June 15, and we meet and confer over the course of the next week to iron out the details of the stipulated protective order? I would still produce responses to the Requests for Admissions on June 8 since Requests for Admissions do not touch upon documents.

Is that acceptable?

Blaze Van Dine

Attorney at Law

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From: Brendan Ngwa Nforbi <bnn.cdl@gmail.com>
Sent: Thursday, June 4, 2026 1:08 PM
To: Blaze Van Dine <blaze@sims-law.net>
Cc: June Meinecke <june@sims-law.net>; Kim Schmitt <kschmitt@sims-law.net>
Subject: Re: Newanforbi v. Palacios re Stipulated Protective Order

Mr. Van Dine,

Thank you for sending the proposed stipulated protective order. I have reviewed it carefully.

While I appreciate the framework, the draft as written does not address several of the conditions I outlined in my June 1 response — most notably, the requirement that designated materials be usable in other related cases. Section VI of your draft restricts use to "solely for the purpose of this Litigation" and prohibits use "for any other purpose whatsoever," which is directly contrary to the condition I stated.

I have prepared a redlined version of your draft with proposed modifications. The changes are tracked and attributed to me so your team can review them efficiently. In summary, the modifications address the following:

1. Section I.A — Narrowing the definition of "Confidential Information" to exclude institutional policies, training protocols, and clinical practice guidelines, which are central to the claims in this action and are not the type of private information a protective order is designed to shield.

2. Section III.B — Replacing the 30-day deadline for challenging confidentiality designations with a pre-trial deadline, subject to a good-faith meet-and-confer requirement.

3. Section IV.A — Adding a cross-reference to Section VI to harmonize the use restrictions.

4. Section VI — Replacing the absolute "this litigation only" restriction with a provision permitting use of designated materials in related pending litigation, including Newanforbi v. Derrick et al. (E.D. Cal. No. 2:26-cv-00004), subject to written notice, comparable protections in the receiving proceeding, and restrictions on third-party disclosure.

5. Section VIII — Adding a retention carve-out permitting retention of materials necessary for use in related proceedings identified in Section VI.

6. New Section X — Adding a provision permitting disclosures to governmental agencies, regulatory bodies, and professional licensing boards with jurisdiction over the conduct alleged in this action.

7. Signature Block — Correcting my legal name to Brendan Ngehsi Newanforbi and adding my pro per designation.

I want to emphasize that all modifications apply equally to both parties. If HOPE or Palacios is a party to related litigation in the future, they may also use Confidential Information from this case in that litigation under the same terms. These changes are intended to produce a fair and balanced order, not a one-sided one.

The redlined document is attached.

To be clear: you do not have my permission to affix my signature to any document. I will review and sign any finalized stipulation myself.

Please review the proposed modifications and let me know whether you are agreeable or wish to discuss further.

Thank you,

Brendan Ngehsi Newanforbi

On Thu, Jun 4, 2026 at 10:07 AM Blaze Van Dine <blaze@sims-law.net> wrote:

> Hello Mr. Newanforbi,
>
> Attached is a proposed stipulated protective order for your consideration. I believe it addresses all your concerns. Let me know if you have any questions or changes. Or if I have permission to affix your signature.

Blaze Van Dine

Attorney at Law

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From: Brendan Ngwa Nforbi <bnn.cdl@gmail.com>
Sent: Monday, June 1, 2026 2:03 PM
To: Blaze Van Dine <blaze@sims-law.net>
Cc: June Meinecke <june@sims-law.net>; Kim Schmitt <kschmitt@sims-law.net>
Subject: Re: Newanforbi v. Palacios re Stipulated Protective Order

Mr. Van Dine,

Thank you for your email. I am open in principle to a stipulated protective order, provided the terms are reasonable, reciprocal, and do not unduly restrict my ability to use documents in connection with court filings, hearings, and trial in this matter.

Please send me your proposed draft at your earliest convenience. I will review it carefully and respond with any proposed modifications before we finalize any stipulation.

I would note that any protective order should, at a minimum: (1) apply equally to all parties; (2) permit use of designated materials in all court proceedings and filings in this action and other related cases, with appropriate redaction or sealing procedures as the Court may direct; (3) include a narrowly defined definition of what qualifies as "Confidential" or "Sensitive" material; and (4) provide a mechanism for challenging an improper confidentiality designation.

I look forward to receiving your draft.

Respectfully,

Brendan

On Mon, Jun 1, 2026 at 1:36 PM Blaze Van Dine <blaze@sims-law.net> wrote:

> Mr. Newanforbi,
>
> In preparing the responses to Plaintiff's discovery requests, it appears to me that we need a protective order in this case, as there are documents that are sensitive and confidential at issue. Are you willing to stipulate to a protective order? If so we will prepare a proposed draft for your consideration.

Blaze Van Dine

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